Call to the Bar — Criminal Law & Criminal Procedure

Bullet Digest · Sessions 11–15

Every rule, element, exception, and exam trap from the full summary. ***CL*** *= common law,* ***MPC*** *= Model Penal Code — "under the Model Penal Code" in a question means switch rulebooks.*

Part I — Session 11: Criminal Law I — Actus Reus & Mens Rea

The four-element frame (use on every criminal-law question)

- **Every crime breaks into four questions, in order:** (1) **Actus reus** — a voluntary guilty act (or omission where a legal duty existed)? (2) **Mens rea** — what guilty mind is required, and did he have it? (3) **Concurrence** — did mind and act coincide in time? (4) **Causation** — for result crimes (homicide, arson), did the act cause the result?
- **Miss any one of the four and there is no crime** — check them in order, every time.

1. How American law classifies crimes

- **Felony / misdemeanor / infraction — the line is the punishment: felony** = death or imprisonment **over one year** (state prison); **misdemeanor** = **one year or less** (county jail); **infraction** = **no jail**, fine only.
- **Criminal law today is statutory** — the old common-law labels survive only as statutory definitions. **If a statute doesn't prohibit it, it isn't a crime.**
- **Mala in se vs. mala prohibita:** *mala in se* = wrong in itself (murder, rape, theft); *mala prohibita* = wrong only because prohibited (unlicensed driving). **This drives strict liability**, which lives almost entirely in the mala prohibita regulatory world.
- **The Model Penal Code (MPC)** — the ALI's 1962 model code, adopted in whole or part by roughly half the states. The exam tests **both** rulebooks and loves where they differ. ("Felony" is a trigger word throughout — felony murder, burglary, accomplice rules key off it.) *(Bridge: Nigerian Criminal Code s. 24 — no responsibility for an act independent of the will.)*

2. Actus reus — the voluntary act

- **The act must be voluntary** — the conduct the statute punishes must be voluntary bodily movement. *Martin v. State:* police dragged a drunk man into the street and arrested him for public drunkenness — **reversed**: "being in public" was not his voluntary act.
- **Unconscious conduct never counts:** reflexes, convulsions, seizures, sleepwalking, a hypoglycemic episode.
- **Trap:** voluntary intoxication does **not** make an act involuntary (choosing to drink was voluntary) — yet in *Martin* "he voluntarily got drunk" still fails, because the *prohibited conduct itself* must be voluntary.
- **Omissions — guilty only with a legal duty.** A failure to act is an actus reus **only** if a legal duty existed. **The five duty sources (memorize):** 1. **Statute** — e.g., tax filing; hit-and-run reporting. 2. **Status relationship** — parent–child, spouse–spouse. 3. **Contract** — lifeguard, babysitter, nurse. 4. **Voluntary assumption** — begin a

rescue and you may not abandon it, leaving the victim worse off. 5. **Creation of the peril** — knock someone into a river, even accidentally: you must attempt rescue or call for help.

- **Favorite omission trap: no general duty to rescue a stranger** — even if rescue is easy and risk-free. Moral duty ≠ legal duty (same as tort nonfeasance).
- **Status crimes are unconstitutional.** *Robinson v. California:* "being addicted to narcotics" as a crime = cruel and unusual punishment (8th Amendment). Punish the **act** (possessing, using, selling), never the **status** (addict, homeless). *Powell v. Texas:* appearing drunk in public is conduct — punishable.
- **Possession counts; thoughts don't.** Knowing possession (knowledge + control, incl. constructive and joint possession) satisfies actus reus; pure thoughts never do. MPC §2.01: possession is an act only if he knowingly procured/received the thing, or was aware of his control long enough to have terminated it.

3. Mens rea — the four-rung ladder

- **Common-law buckets:** (1) **Specific intent** — intent to bring about the specific result (burglary, attempt, larceny). (2) **Malice** — reckless disregard, the "abandoned and malignant heart" (second-degree murder, arson). (3) **General intent** — awareness of doing the act itself (battery, rape). (4) **Strict liability** — no mental state at all.
- **The MPC ladder (§2.02) — top to bottom:**
- **Purpose** — his *conscious object* is to cause the result.
- **Knowledge** — he is *aware it is practically certain* his conduct will cause the result (match lit in a hay-filled barn: he doesn't desire the fire; he knows it's practically certain).
- **Recklessness** — he *consciously disregards* a substantial, unjustifiable risk (a gross deviation). **Subjective:** he perceived the risk and brushed it aside.
- **Negligence** — he *should have been aware* of a substantial, unjustifiable risk (a gross deviation). **Objective:** he didn't see it; a reasonable person would have.
- **The recklessness–negligence line is the single most-tested boundary in criminal law.** Both require a *gross* deviation — ordinary carelessness is neither. Only difference: recklessness = he **saw** the risk; negligence = he **never saw it** but should have. *Trap:* a defendant who credibly says it never occurred to him anyone was at risk is at most negligent — a recklessness statute doesn't reach him.
- **The silence rule:** where the statute names no mental state, the MPC reads in **at least recklessness** (§2.02(3)) — the presumption against strict liability (*Morissette v. United States*: courts presume mens rea was required for common-law-derived crimes).
- **Transferred intent:** aim at A, kill B — the intent transfers; guilty of murder of B. The MPC skips the label, same result via causation (§2.03).
- **Concurrence — mind and act must coincide.** *Thabo Meli v. Regina:* men beat the victim, believed him dead, rolled the "body" off a cliff — the fall killed him. **Murder**: one continuing transaction. *Trap:* D plans to kill V, gun jams, plan abandoned; an hour later D accidentally runs V over — **no murder** (no guilty mind at the fatal act).

4. Mistake, and strict liability

- **Mistake of fact — the rule changes with the crime's mental state:**
- **Specific-intent crimes:** ANY **honest** mistake defeats — even an unreasonable one (takes a coat he honestly believes is his = no larceny; larceny needs intent to steal).

- **Malice / general-intent crimes:** honest **AND reasonable**.
- **Strict-liability crimes: NEVER** a defense — not even a reasonable one.
- **Mistake/ignorance of law — generally NO defense** ("everyone is presumed to know the law"). Three narrow exceptions: 1. ***Lambert v. California*** — due process requires fair notice where conduct is **wholly passive** and he had no notice of the duty (felon who failed to register in Los Angeles — reversed). 2. **Reasonable reliance on an official statement of law** later held invalid (MPC §2.04(3)(b)) — e.g., an attorney general's opinion followed in good faith. 3. **Mistake of law negating a required specific intent** — "willfulness" crimes like tax evasion (*Cheek v. United States*): an honest belief he owed no tax, even if unreasonable, defeats willfulness.
- **Strict liability — the regulatory corner:** no mens rea at all (selling alcohol to minors; statutory rape as to age; adulterated food). *Exam habit:* serious jail time + mala in se → strict liability is almost certainly NOT the answer. MPC confines it to **"violations"** — no imprisonment (§2.05).
- *Trap (statutory rape):* she lied about her age with a convincing fake ID — **still guilty** as to age; even a reasonable mistake of fact is no defense.

5. Causation (result crimes)

- **Actual cause — the but-for test:** "But for his act, would the result have occurred?" Where **two acts are each independently sufficient** (two hunters' bullets, two fires), use the **substantial-factor test**.
- **Proximate cause — intervening acts decide:**
- **Responsive interveners** (reacting to his conduct: victim flees and is hit by a car; doctors treat the wound negligently) — **chain survives**, unless the response is grossly abnormal.
- **Coincidental interveners** (unrelated: lightning strikes the victim in hospital; an unrelated second attacker) — **break the chain if unforeseeable**.
- **MPC (§2.03):** no liability where the actual result is too remote or accidental to have a just bearing on culpability.
- **The year-and-a-day rule is dead** (old bar on homicide if death came more than a year and a day after the act) — abolished in most states; tested only as a trap.
- **Checklist:** but-for (or substantial factor)? → intervening act? → responsive = survives (unless grossly abnormal); coincidental = breaks if unforeseeable.

Part II — Session 12: Criminal Law II — Homicide

The frame and the ladder

- **Homicide** = the killing of a human being by another. Only *unlawful* homicide is criminal; justifiable homicide (lawful self-defense, execution of a lawful sentence) is no crime.
- **The ladder: 1st-degree murder** (premeditated intent to kill) → **2nd-degree murder** (malice, no premeditation) → **voluntary manslaughter** (intentional, heat of passion) → **involuntary manslaughter** (criminal negligence, or death during a misdemeanor) → **negligent homicide** (MPC only).
- **Two-step method for every homicide question:** (1) *Murder at all?* — check the four malice routes; none fits = manslaughter or no crime. (2) *Which degree?* — deliberate + premeditated = first; everything else = second.

1. Murder = unlawful killing + malice aforethought

- **Formula:** common-law murder = the **unlawful killing of a human being with malice aforethought**.
- **"Of a human being":** the victim must have been **born alive** — a fetus is not a "human being" at common law (statutes add feticide offences; MPC §210.0).
- **Malice aforethought is a term of art** — it does **NOT** mean "planned in advance." It is **any one of four mental states**: 1. **Intent to kill** (express malice). 2. **Intent to inflict serious bodily injury** (implied malice) — death following a meant beating is murder. 3. **Depraved heart** — extreme recklessness showing extreme indifference to human life (§2). 4. **Felony murder** — killing during an inherently dangerous felony (§3).
- **Any ONE of the four = malice = murder.** "Aforethought" ≠ thinking beforehand — that is *premeditation*, which only divides first from second degree.
- **First-degree murder** = **deliberate AND premeditated** killing, plus (in most statutes) felony murder. *Deliberate* = he weighed it, however briefly; *premeditated* = he thought about it beforehand.
- **Golden trap: premeditation can form in an instant** — no minimum thinking time. Mid-argument he decides "I'm going to kill him," reaches for a weapon, fires: premeditated — **seconds are enough**. What defeats premeditation is not speed but **heat of passion** (§4).
- **Second-degree murder** = every other murder — all malice killings without premeditation/deliberation.

2. Depraved heart — murder without meaning it

- **Rule:** an *unintentional* killing is **second-degree murder** when he acted with **extreme recklessness manifesting extreme indifference to the value of human life** — the "abandoned and malignant heart." The act must create a **very high risk of death or serious bodily injury**, showing he did not care whether someone died.
- **Classic examples:** firing into an occupied house or crowd; Russian roulette with another person.
- **The four-way split (most-tested; full version in §5):** extreme recklessness + death = **2nd-degree murder** — it is the recklessness rung at its extreme: subjective, conscious disregard of a *very high* risk of death.

3. Felony murder — the strict-liability murder

- **Rule:** a killing during the commission (or attempt) of an **inherently dangerous felony** is murder — **no intent to kill need be proved**; malice is implied from the felony (gun accidentally discharges during an armed robbery, killing the clerk = murder).
- **The exam tests the limits, not the rule — five limits:** 1. **Inherently dangerous felony.** Classic list: **burglary, arson, rape, robbery, kidnapping**. A non-dangerous felony (forgery) generally cannot support it. 2. **Merger doctrine (the big one).** The predicate felony must be **independent of the killing** — the very assault that caused the death can't be bootstrapped into the felony; it *merges* into the homicide. Beating a victim to death = **NOT felony murder**, but still **2nd-degree murder** via route #2 (intent to inflict SBI). **Merger kills the theory, not the charge.** 3. **Agency theory (majority).** Only deaths **caused by the felon or his agent** count. A guard or officer shooting back and killing a bystander — or a co-robber — is **NOT** felony murder (killing by someone *resisting*). Minority: any foreseeable death counts; exam defaults to **majority/agency** unless told otherwise. 4. **Res gestae — "in the course of."** Attempt, commission, and **immediate flight** — flight lasts until a **point of temporary safety**. Killing during the chase = felony murder; the next day, home safe = separate homicide. 5. **Foreseeable manner of death.** A bizarre, freakish causal chain can break felony murder, as with proximate cause.

- **MPC (§210.2): no independent felony-murder rule.** Committing/attempting robbery, rape, arson, burglary, kidnapping, or felonious escape raises a **rebuttable presumption** of recklessness manifesting extreme indifference — murder via the depraved-heart route, and he can rebut it.

4. Voluntary manslaughter — murder minus malice, because of provocation

- **Rule:** an **intentional** killing in **heat of passion upon adequate provocation** is voluntary manslaughter, not murder — provocation **negates malice**; he meant to kill, but the inflamed mind is less culpable.
- **Heat of passion** = sudden intense emotion (rage, terror) from adequate provocation, with no cooling time.
- **Four elements (CL):** 1. **Adequate provocation** — would arouse sudden, intense passion in a **reasonable person**: catching a spouse **in the act of adultery**; a violent assault/battery on the defendant; witnessing a violent attack on a close relative. **Mere words, however insulting, are NOT adequate (majority).** (Minority: *informational* words — being *told* of adultery — can qualify; MBE = majority.) 2. **Actual subjective passion** — he must *actually* have been in the heat of passion; cold, calculated revenge = murder. 3. **No cooling time** — killing before a reasonable person would have cooled (objective). Hours of brooding, leaving and returning with a weapon = cooled = **murder**; seconds/minutes of rage = manslaughter. 4. **Causal connection** — provocation → passion → killing.
- **Fine points: Misdirected retaliation** (aims at the provocateur, kills a bystander) = **still voluntary manslaughter** — transferred intent carries the mitigated state. Provocation mitigates only *intentional* killings — no help for depraved-heart or felony-murder defendants.
- **MPC (§210.3) — EMED:** murder becomes manslaughter when committed under **extreme mental or emotional disturbance** with a **reasonable explanation or excuse**, judged from the viewpoint of a person **in the defendant's situation**. Broader than CL: **no rigid cooling-time rule**; "situation" includes his personal characteristics (e.g., the battered spouse who kills after years of abuse — no CL provocation, but a strong EMED argument).

5. Involuntary manslaughter — the unintentional killings

- **Route 1 — criminal negligence:** death by **gross negligence** (a gross deviation, more than ordinary tort negligence): the drunk driver who kills a pedestrian; the loaded gun left where a toddler reaches it. Ordinary negligence + death = **no crime** at CL; MPC = **negligent homicide** (misdemeanor, §210.4).
- **Route 2 — misdemeanor manslaughter (unlawful-act doctrine):** death during a **misdemeanor or non-dangerous felony** — felony murder's mirror image, one rung down. **Merger applies too:** the misdemeanor must be independent of the killing (a simple assault that kills is analyzed as criminal negligence instead).
- **The recklessness line (memorize):** extreme recklessness + death = **2nd-degree murder** · ordinary recklessness = **involuntary manslaughter** (CL) / manslaughter (MPC §210.3(1)(a)) · criminal (gross) negligence = **involuntary manslaughter** · ordinary negligence = **no crime** (CL) / **negligent homicide** (MPC).

6. Causation in death cases — the traps

- **Subsequent medical negligence is foreseeable** — shot victim dies from botched surgery: the shooter still caused the death (responsive intervener). **The victim's own conduct rarely breaks the chain** — refusing treatment on religious grounds doesn't save the defendant; neither does a pre-existing condition (eggshell-skull in criminal dress).

- **Year-and-a-day: ABOLISHED** in most jurisdictions — death two years later from the original wound is still homicide (proximate cause permitting); the old rule is only a trap answer.
- **Concurrence:** *Thabo Meli* — one continuing transaction; murder stands (Part I).

7. Defenses to a homicide charge (roundup)

- **Self-defense** (full treatment: Part IV §1): deadly force only against an **imminent threat of death or SBI**, never for property alone; **imperfect self-defense** (honest but *unreasonable* belief) doesn't acquit — it **reduces murder to voluntary manslaughter**.
- **Insanity, intoxication, mistake** — Parts I & IV rules unchanged. Note: **voluntary intoxication can negate specific intent** — including premeditation (1st-degree → 2nd) — but is never a full defense.
- **Consent is never a defense to homicide** (dueling deaths are murder).

Part III — Session 13: Criminal Law III — Inchoate Crimes & Accomplice Liability

Key terms

- **Inchoate** = "just begun, incomplete" — a crime anticipating another crime. Exactly **three**: **attempt, conspiracy, solicitation**.
- **Merger** = the lesser offence is absorbed into the greater — one conviction. **Attempt merges; conspiracy does NOT** — memorize that pair.
- **Principal** = who commits the act; **accomplice** = who helps; **target crime** = the crime aimed at. *(Bridge: Nigerian Criminal Code ss. 516–517 conspiracy — same skeleton; US law adds the traps below.)*

1. Attempt — the almost-crime

- **Elements (CL) — three, in order:** (1) **specific intent** to commit the target crime (attempt *always* requires specific intent — the engine of half the traps); (2) an **overt act beyond mere preparation**; (3) **failure** — the crime is not completed.
- **MPC (§5.01):** purpose (or belief the conduct will cause the result) + a **"substantial step" strongly corroborative of criminal purpose** — more generous to the prosecution; conduct further from completion can still be attempt.
- **Preparation vs. perpetration — the exam parks facts on this line:** buying a gun (or matches) = **preparation**; lying in wait with the gun, or pouring gasoline and striking the match = **attempt**. *CL:* gone beyond preparation? *MPC:* substantial step strongly showing purpose?
- **Abandonment:** a **complete and voluntary** abandonment before completion is a defense — a genuine change of heart. Stopping because police arrived, the victim fought back, or the safe was too hard is **NOT** voluntary; mere postponement isn't abandonment either (MPC §5.01(4)).
- **Impossibility — the classic pair:**
- **Factual impossibility is NEVER a defense** (both rulebooks): the pickpocket's empty pocket; shooting a corpse believed alive; "cocaine" that is baking soda. The crime failed only through facts he didn't know — still attempt.

- **Legal impossibility IS a defense at CL:** he does everything he set out to do and, fully executed, it still isn't a crime ("receiving stolen property" never actually stolen; Sunday hunting he believes illegal after repeal). **The MPC largely wipes this out** — conduct is judged on the circumstances **as he believed them to be** (§5.01).
- **The no-attempt rule (heavily tested):** attempt requires specific intent, so there is **no** attempted depraved-heart murder, attempted felony murder, or attempted involuntary manslaughter — you cannot "intend" an unintentional killing. (A *completed* lesser crime on the same facts can stand — firing at officers to scare them is completed aggravated assault.)
- **Merger:** attempt **merges** into the completed crime — one conviction, for the completed offence.

2. Conspiracy — the agreement-crime

- **Elements (CL) — three:** (1) an **agreement** between two or more persons to commit an unlawful act (or a lawful act by unlawful means) — the agreement can be **tacit**, inferred from concerted action; no handshake or written plan needed; (2) **intent to enter the agreement**; (3) **intent that the crime be committed** (a specific-intent crime).
- **The overt-act split — the biggest conspiracy trap:**
- **CL: NO overt act required** — the agreement alone completes the crime.
- **Federal law, most statutes, MPC §5.03(5): an overt act in furtherance IS required** — but *any* act will do, even a lawful one (buying a map, renting the getaway car, a phone call).
- **MPC refinement:** for conspiracy to commit a **first- or second-degree felony** (e.g., robbery), the MPC requires **no overt act**.
- **Bilateral vs. unilateral — the undercover-agent fight:**
- **CL (majority): bilateral** — two **genuinely guilty minds** required. "Agreement" with a feigning undercover officer = **no conspiracy**; you can't agree with yourself.
- **MPC (minority, heavily tested): unilateral** — **one** genuine criminal mind suffices; agreeing with a feigning agent **IS** conspiracy. *(Miss-bank: CL needs two guilty minds; the MPC needs one.)*
- **No merger:** conspiracy does **NOT** merge with the target crime — convictions for **both** conspiracy and the completed robbery are proper.
- **Pinkerton liability** (*Pinkerton v. United States*): each conspirator is liable for **substantive crimes by co-conspirators in furtherance of the conspiracy, if reasonably foreseeable** — even crimes he didn't join or know of (the getaway driver answers for his partner's killing inside the bank). Contrast accomplice liability (§4): it needs actual aid — **Pinkerton needs only membership**.
- **Withdrawal:** to cut off liability for *future* crimes he must **affirmatively communicate** withdrawal to the co-conspirators (or notify police) **before** the crime — silent walking away is not withdrawal, and withdrawal **never** erases liability for the conspiracy itself or crimes already committed. (MPC: he must actually **thwart** the scheme.)
- **Wharton's rule:** where the target crime by nature requires **two participants** (dueling, adultery, bribery), **no conspiracy without a third conspirator** — two people agreeing to the two-person crime is just the crime itself. (Courts often refuse Wharton for drug deals.)

3. Solicitation — the asking-crime

- **The whole crime:** asking, commanding, encouraging, or requesting another to commit a crime, **with intent that it be committed**. **Complete the moment the request is communicated** — no agreement or act by the other person needed (if he agrees, it's conspiracy); an uncommunicated wish is not solicitation.
- **Merger:** solicitation **merges** into conspiracy (if the other agrees) and into the completed offence. **Defense:** voluntary and complete **renunciation** before the crime is committed.

4. Accomplice liability — who else goes down

- **Old labels** (principal in the first/second degree; accessory before/after the fact) are **mostly abolished** — everyone who aids is an **accomplice, liable as a principal**. MBE: modern rule unless told otherwise.
- **Elements — four, each tested:** 1. **Intent to aid, assist, or encourage** the principal. 2. **Intent (purpose) that the principal commit the crime** — the **dual-intent requirement**. Knowledge alone is **not** enough; he must act with the *purpose* of facilitating. (*Rosemond v. United States:* **advance knowledge of the whole plan** — e.g., knowing a gun would be used in the robbery.) 3. **Actual aid or encouragement given** — **mere presence is NOT enough**, unless the presence was intended to encourage and did (the lookout who shows up to embolden the burglars counts; the watching bystander doesn't). 4. **Derivative** — the principal must commit (or attempt) the underlying crime; no principal crime, no accomplice liability. **Exception — innocent-agent doctrine:** if the "doer" is innocent (child, insane person, someone tricked), the user is liable **as principal directly**.
- **Scope — the CL/MPC split:**
- **CL:** liable for the target crime **AND** any crime that was its **natural and probable consequence** (the car lender who knowingly and purposely aids a burglary answers for the homeowner's killing during it — guilty of burglary **and murder** as an accomplice).
- **MPC (§2.06): narrower** — only offences he had the **purpose** to promote or facilitate. Know both; apply the question's rulebook. (The CL murder result above is accomplice liability, **not Pinkerton** — Pinkerton needs conspiracy membership, an agreement a mere aider may not share.)
- **Each person's liability is measured by his OWN mens rea** — the accomplice can be guilty of a **greater** offence than the principal (principal kills negligently = manslaughter; aider intended the death = murder for the aider).
- **Withdrawal:** must **communicate** it **and neutralize assistance already given**, before the crime. Walking away isn't enough if the gun you supplied is still in play.
- **Accessory after the fact:** knowledge a felony was committed + personal aid helping the felon avoid apprehension/punishment = a **separate, lesser offence** (hindering apprehension/obstruction) — **NOT** liability for the original crime.
- **Defenses:** the principal's **justification** (self-defense) **transfers** — principal acquitted on justification, aider acquitted too. The principal's **personal excuse** (insanity) does **not** transfer.

Part IV — Session 14: Criminal Law IV — Defenses (Justification vs. Excuse)

The big frame — state the family first in the essay

- **Justification — the act was the *right* thing under the circumstances:** self-defense, defense of others, defense of property, necessity. Result: **the act isn't criminal at all** (so the victim of justified force can't claim self-defense back).
- **Excuse — the actor couldn't be *blamed* though the act was wrong:** duress, insanity, infancy, involuntary intoxication, entrapment. Result: **no culpability**.

1. Self-defense

- **Three elements (say them first in the essay):** (1) a **reasonable belief that force is necessary** — judged **objectively** (would a reasonable person in his shoes believe it?); no actual attack required; (2) against an **imminent** (right-now) **unlawful** threat of force; (3) a **proportional response** — non-deadly threat, non-deadly force.
- **Deadly force is the gated version:** only on a reasonable belief it is necessary to prevent **imminent death or serious bodily injury (SBI)** to himself. (SBI = substantial risk of death, or serious, protracted disfigurement or impairment.)
- **Retreat — the favorite trap inside self-defense:**
- **Majority: no duty to retreat** where he has a right to be. **Minority (~a dozen states):** must retreat if he can do so **in complete safety** before using deadly force.
- **Castle doctrine (near-universal):** in his own home he **never** has to retreat. *Trap:* the homeowner who shoots a nighttime intruder is defended under castle doctrine/self-defense — "defense of property" is the wrong label.
- **Initial aggressor:** who starts the fight **can't** claim self-defense — **unless** (a) he **completely withdraws and communicates** it, or (b) the victim **escalates** a non-deadly fight into a deadly one; then the right returns.
- **Imperfect self-defense** (minority rule, heavily tested): an **honest but unreasonable** belief in the need for deadly force doesn't acquit — it **reduces murder to voluntary manslaughter**. Pairs with adequate provocation (Part II) as the two mitigation doctrines turning murder into manslaughter.
- **Defense of others:** majority — he may defend another if he **reasonably believes** that person has the right of self-defense, **even if he turns out to be wrong** about the facts (so intervening for a "victim" who was really the aggressor is still protected if the belief was reasonable). The "alter-ego" rule — stepping exactly into their shoes — is the dying minority view.

2. Defense of property and the mechanical-device rule

- **Non-deadly force** may defend property. **Deadly force may NEVER be used solely to defend property** — lawful only where property-defense coincides with defense of the person (intruder in the occupied home at night).
- **Mechanical devices (spring guns, traps):** you may not do **indirectly** what you couldn't do **directly** (*Katko v. Briney*). "He wasn't home" kills the defense-of-person element — deadly force for the empty cabin alone fails.

3. Necessity (the "choice of evils")

- He broke the law to avoid a greater harm. **All six elements must be met:** (1) an **imminent threat of greater harm** (storm, fire, runaway car, or human conduct); (2) **no reasonable legal alternative**; (3) a **direct causal connection** between the act and avoiding the harm; (4) he **did not create the peril**; (5) **proportionality** — harm avoided outweighs harm caused (destroy property to save a life, never the reverse); (6) **no adequate legislative choice** — the legislature hasn't already balanced the values.
- **Three classic limits:**
- ***R v. Dudley & Stephens* (1884): NEVER a defense to intentional murder** — shipwreck survivors who killed the cabin boy to feed themselves were convicted; life is never weighed against life.
- **Economic necessity** (stealing to feed your family) is **never** a defense.
- **Prison escape:** applies only if he faced imminent death/SBI **and** surrendered at the first safe opportunity.

4. Duress

- **Elements:** (1) an **imminent threat of death or SBI from another human being** (a natural force = necessity, not duress); (2) directed at the defendant **or a close family member**; (3) **no reasonable opportunity to escape**; (4) he was **not at fault** in being subjected to it (join a gang, no duress when it turns on you).
- **MPC (§2.09):** would a **person of reasonable firmness** in his situation have been unable to resist? Same outcome.
- **Duress is NEVER a defense to intentional homicide** — forced at gunpoint to kill is still murder (CL and MPC agree).
- **Duress IS a defense to lesser crimes** (robbery, burglary, perjury…) — it fails *only* for homicide. *Trap:* the threat need **not** be aimed at the defendant herself — a gun to her child's head, ordering her to drive the getaway car, makes duress succeed for robbery.

5. Entrapment

- **Government inducement only** — private people can't set up this defense.
- **Subjective test (majority/federal) — two parts:** (1) **Government inducement** — police *planted the idea/ persuaded*, not merely provided an opportunity ("We have drugs for sale, interested?" = opportunity, **not** inducement; repeated pressure or huge profit markups = inducement). (2) **No predisposition** — he wasn't already inclined to this type of crime (prior similar conduct, eagerness, expertise).
- *Trap:* persistent persuasion (weeks of begging calls, triple street price) of a man with no record who only reluctantly agrees = entrapment **succeeds** federally; merely *completing* the sale voluntarily doesn't defeat it.
- **MPC/objective minority (§2.13):** judges **police conduct** — would the methods create a substantial risk that an **innocent, law-abiding person** would commit the offence? His history is irrelevant. *Spot the test:* "was he predisposed?" = subjective.

6. Insanity — the four tests (learn this ladder cold)

- **M'Naghten (majority) — cognitive only.** Insane if, from a mental disease or defect, he **either** (a) did not know the **nature and quality** of his act, **or** (b) did not know what he was doing was **wrong**. **Either prong suffices** (miss-bank: M'Naghten is either/or); know right from wrong = sane. *Trap:* he knew he was killing but believed God commanded it as a holy act, hence *not wrong* — **insane under prong (b)**.

- **Irresistible impulse** (add-on in some states): knew it was wrong but, from mental disease, **could not control** his conduct — a volitional prong added to M'Naghten.
- **MPC §4.01 (substantial capacity):** from mental disease or defect, he lacked **substantial capacity** to **appreciate the criminality** of his conduct **or** to **conform** his conduct to the law. "Substantial" (not total) + either prong = **the broadest test**.
- **Durham "product" test:** the act was the *product* of mental disease. **Effectively dead** — rejected by every federal court after the Hinckley acquittal (1981) and the Insanity Defense Reform Act of 1984.
- **Exam-critical extras:**
- **Burden:** most states — **defendant** proves insanity by a **preponderance**. Federal (post-1984) — defendant by **clear and convincing evidence**. The prosecution never proves sanity as an element.
- **Guilty but mentally ill (GBMI):** convicted, with treatment ordered — a **conviction, not an acquittal**.
- **Competence to stand trial is different** (*Dusky*: understand the proceedings + assist counsel). Incompetence **pauses** the trial; insanity is a defense **at** trial — the exam deliberately confuses them.
- **Voluntary intoxication is not a mental disease** — it only negates specific-intent crimes. **Involuntary intoxication** (drugged unknowingly; unexpected reaction to prescribed medication) is treated **like insanity**.

7. Infancy

- **Common-law ages (the exam baseline): under 7** = no capacity (conclusive); **7–14** = rebuttable presumption of incapacity (prosecution may prove the child knew right from wrong); **14+** = treated as an adult. Modern statutes mostly route juveniles to juvenile court, but the MBE still tests these ages.

Quick reference — defense → effect

- **Self-defense / defense of others / entrapment** → acquittal. **Necessity** → acquittal, **except** intentional murder. **Duress** → acquittal for lesser crimes, **never** intentional homicide. **Insanity** → NGRI → **commitment, not prison**. **Imperfect self-defense** → mitigation only (murder → voluntary manslaughter). **Infancy** → no capacity, no prosecution.

Part V — Session 15: Criminal Procedure I — The Fourth Amendment (Search & Seizure)

The big frame — two questions, in order

- On every suppression problem: **(1) Was there a search or seizure at all?** If the Fourth Amendment doesn't apply, police needed nothing. **(2) If it applies — warrant, or an exception with EVERY element met?** The warrant is the default; every warrantless action must fit an exception **completely**. *The MBE's favorite wrong answer is the exception with one element missing.*
- **"Government" matters:** the Amendment restrains the **state**, not private people — a store detective acting purely on his own is not a state actor, but police *directing* him are.
- **Search** = government intrusion into something you have a right to keep private. **Seizure** = government taking or holding you (or your property).

1. Was it a "search"? — two doors in, either one suffices

- **Door one — *Katz v. United States* (1967): reasonable expectation of privacy (REP).** Two prongs: (a) he **subjectively** expected privacy, **and** (b) society accepts that expectation as **objectively reasonable**.
- **Door two — *United States v. Jones* (2012): the trespass revival.** Police **physically intrude** on "persons, houses, papers, or effects" to gather information = a search, no REP analysis needed (GPS tracker stuck on a car). **Either door suffices** — the exam loves patterns where one door is shut and the other open.
- **NO REP (no search at all):**
- What he **knowingly exposes to the public** — voice in a public place, face on the street.
- **Trash left at the curb** — *California v. Greenwood* (1988): at the curb, the privacy claim is abandoned.
- **Open fields** beyond the home and its **curtilage** (the fenced yard right around the house) — *Oliver v. United States* (1984); "No Trespassing" signs don't create REP in a field.
- **REP exists (the modern edge):**
- **127 days of cell-site location records** — *Carpenter v. United States* (2018): long-term tracking reveals a "comprehensive chronicle" of a life; REP in the whole.
- **Home-interior details via sense-enhancing technology not in general public use** — *Kyllo v. United States* (2001): a thermal imager aimed at a house from the street **is a search**; the home is the apex of REP. *Trap:* a warrant based *solely* on such imaging is void and the evidence suppressed — the imaging itself was the unconstitutional search ("no physical trespass" is the wrong answer; the *Katz* door is open).

2. Was it a "seizure"?

- **Of a person:** a **show of authority** making a reasonable person feel **not free to leave** — patrol lights, physical touch, blocking the path. An **arrest** is the full seizure (needs **probable cause**); an **investigative stop** is brief (needs only **reasonable suspicion**, §4); a **consensual chat** with no show of authority is **no seizure at all**.
- **Of property:** a **"meaningful interference"** with the possessory interest — *taking* the suitcase, not merely looking at it.

3. The warrant — the default, and its three requirements

- **Warrant** = a court order authorizing a search or arrest. For a search warrant, **all three are mandatory:** (1) issued by a **neutral and detached magistrate** (a judge — not the officer's supervisor); (2) supported by **probable cause** (§4); (3) **particularly describing** the place to be searched and the things to be seized.
- The constitutional enemy is the **"general warrant"** — a blank permission to rummage; particularity is what killed it.

4. The three burdens, in ascending order

- Rank them (the exam loves confusing them): **(1) Reasonable suspicion** — specific, articulable facts (**more than a hunch**) that criminal activity is afoot; supports a **Terry stop and nothing more**. **(2) Probable cause** — a **fair probability**, on the **totality of the circumstances**, that contraband/evidence will be found (search) or that the person committed a crime (arrest); supports **arrests and warrants**. **(3) Preponderance of the evidence** — more likely than not; the **civil** standard, listed only so you never confuse it with probable cause.
- *(Bridge: "intelligence suggests" = reasonable suspicion; "enough to charge" = probable cause.)*

5. Standing — who may complain?

- Only the person whose **own** Fourth Amendment rights were violated may move to suppress — rights travel with the person, not with the contraband.
- An **overnight guest** has REP in the host's home and may challenge the search — *Minnesota v. Olson* (1990).
- A **mere passenger** in another's car usually may **not** — no possessory interest in the car — *Rakas v. Illinois* (1978). (The driver/owner can.)

6. The exception catalog — when police don't need a warrant

Each exception is a checklist; one missing element kills it. The MBE mines this section hardest.

- **a) Search incident to a lawful arrest** — *Chimel v. California:* after a lawful arrest, police may search the arrestee's **person** and the area within his **immediate control** (arm's reach — where he might grab a weapon or destroy evidence). **Cars — *Arizona v. Gant* (2009), two doors only:** (1) the arrestee is **unsecured** and might reach the passenger compartment, **or** (2) it's reasonable to believe **evidence of the crime of arrest** is inside. *Trap:* arrestee handcuffed in the cruiser on a traffic warrant — **both doors shut**; the glove-box cocaine is suppressed.
- **b) Terry stop and frisk — two steps, two justifications** (the single most-tested Terry point). The **stop** (brief detention) needs **reasonable suspicion of criminal activity** — specific facts (repeatedly pacing past a closed store, peering in, conferring = the classic casing pattern). The **frisk** is a **separate step** needing reasonable suspicion he is **armed and dangerous**. **Scope:** pat the **outer clothing first**; reach inside only on the **plain feel** of a weapon (*Minnesota v. Dickerson*). Stop without frisk-basis = unlawful frisk.
- **c) Automobile exception** — *Carroll v. United States:* **probable cause + a readily mobile vehicle** → search the **entire car, including closed containers inside**, no warrant. Note the "plus": probable cause alone isn't the exception — **mobility is the second element**.
- **d) Exigent circumstances: hot pursuit** of a fleeing suspect, **imminent destruction of evidence**, or **emergency aid** to someone believed inside and in danger. Scope is **limited to the emergency** — it ends when the emergency ends.
- **e) Consent:** voluntary consent (no claim of lawful authority, no coercion) makes the search reasonable. A third party with **common authority** (roommate, over shared spaces) can consent — **BUT a physically present co-occupant who objects defeats it** (*Georgia v. Randolph*, 2006); if the objector was **lawfully removed**, the remaining occupant's consent stands (*Fernandez v. California*, 2014). *Presence decides.*
- **f) Plain view:** officer **lawfully present** at the vantage point + contraband **immediately apparent** as such + **lawful access** to it. Seeing it isn't a search; *seizing* it is the exception.
- **g) Inventory search:** a **lawfully impounded** car searched under **standardized, non-pretextual procedures** = reasonable. No standardized procedures = no exception (an on-scene rummage isn't an inventory).
- **Terry in action (worked example):** 2 a.m., a man paces past a closed jewelry store six times, peering in and conferring; approached, he reaches into his jacket; the officer pats the outer surface, feels a pistol-grip shape, reaches in, seizes a gun — **admitted** (stop on reasonable suspicion; frisk on separate armed-and-dangerous suspicion; scope kept). *Change one fact:* stop on "high-crime area" alone → **excluded**; frisk with no armed-and-dangerous basis → **excluded**; hand straight into pockets → **excluded**; probable cause first → exception becomes **search incident to arrest**.

7. The exclusionary rule — and where it does NOT reach

- **The rule:** evidence obtained in violation of the Fourth Amendment is **excluded at trial** — a **deterrent** aimed at police misconduct, **not** a personal right of the defendant. Hence:
- ***Mapp v. Ohio* (1961)** made it binding on the **states**. It does **NOT** apply in **grand-jury proceedings, civil cases, or parole-revocation hearings**, and illegally obtained statements may still **impeach the defendant's own testimony** — *Harris v. New York* (1971).
- **Fruit of the poisonous tree:** evidence *derived from* the violation is excluded too — **unless one of three antidotes saves it:** 1. **Independent source** — police got it separately through a lawful path. 2. **Inevitable discovery** — they **would have found it anyway** by lawful means already in motion (*Nix v. Williams*). *Trap:* an illegal entry's photos are **admitted** where a second team already held a valid warrant and was minutes away; "good faith" is the wrong label — it concerns reliance on a defective warrant, not an illegal entry. 3. **Attenuation** — the taint faded; factors: **time passed, intervening circumstances, flagrancy of the misconduct** (*Utah v. Strieff*: an outstanding arrest warrant discovered during an unlawful stop broke the chain).
- **Plus the good-faith safety valve** (*United States v. Leon*, 1984): officers **reasonably relied on a warrant** later found defective (the magistrate's error, not theirs) → the evidence **stays**; no deterrence in punishing an honest mistake.

Appendix — Review lines carried from earlier sessions (compressed)

One-line reminders banked in the original summary from Sessions 1–10, kept for spaced review.

- **S1:** UBE map; NY pass mark 266/400; MPRE 85; NY Law Course + NY Law Exam also required.
- **S2 (Intentional torts):** intent = purpose or substantial certainty; transferred intent (battery, assault, false imprisonment, trespass); IIED = extreme-and-outrageous conduct + severe distress.
- **S3 (Torts):** trespass to land = unauthorized entry; conversion = full-value interference; defenses — consent, self-defense (never deadly force for property alone), necessity, shopkeeper's privilege.
- **S4 (Negligence):** duty (no duty to rescue a stranger) → breach (reasonable person; negligence per se) → cause in fact (but-for; *Summers v. Tice*) → proximate cause (*Palsgraf*; eggshell rule; superseding acts).
- **S5 (Premises/NIED):** classify the entrant FIRST; NIED (impact rule / *Dillon v. Legg*); contributory negligence = total bar (Maryland still has it); pure vs. modified comparative fault; assumption of risk.
- **S6 (Strict liability/products):** strict liability skips the breach fight; products — three theories, three defects (manufacturing/design/failure-to-warn), chain of distribution.
- **S7 (Formation):** offer (objective standard; ads = invitations; counteroffer kills it); acceptance (mirror-image at CL; mailbox rule); consideration (bargained-for; past consideration, pre-existing duty, illusory promises fail; §90 promissory estoppel = safety net).
- **S8:** classify FIRST, rule SECOND — governing law is step zero (a car is UCC goods, §§2-102, 2-105).
- **S9 (Enforceability):** Statute of Frauds (MYLEGS; UCC §2-201 — $500+ needs a writing, plus exceptions); defenses (fraud = 5 elements; physical duress = void, economic = voidable; undue influence → burden shifts; mutual vs. unilateral mistake; unconscionability; incapacity; illegality); parol evidence rule (total vs. partial integration; 5 exceptions). *Hadley gate:* consequential damages only if foreseeable to both parties **at**

formation. *Liquidated damages:* enforceable if, **at formation**, damages were hard to estimate and the amount a reasonable forecast; unreasonably large = void penalty.

- **S10 (Performance/remedies):** express conditions = strict compliance (§229 forfeiture excuse; prevention); constructive conditions = substantial performance; material vs. minor via §241; anticipatory repudiation + retraction; UCC §2-609 assurance / §2-508 cure. Remedies ladder: expectation → *Hadley* gate → mitigation → liquidated-vs-penalty → specific performance (unique subject; never personal services). UCC: **cover (§2-712)** — buyer covered in good faith without unreasonable delay → cover − contract; **market (§2-713)** — buyer did NOT cover → market at learning of breach − contract; plus resale/lost-volume.
- **Permanent miss-bank lines:** CL needs two guilty minds, the MPC needs one · cover minus contract, times quantity · *Hadley* foreseeability judged at formation · recklessness is subjective · M'Naghten is either/or.